

general appearance by the defendant.” (Code Civ. Proc. § 418.10(d).)

#### Statutory Requirements of Service

“[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction.” (*Renoir v. Redstar Corp.* (2004) 123 Cal.App.4th 1145, 1152 quoting *Ellard v. Conway* (2001) 94 Cal.App.4th 540, 544.) “‘Process’ is ‘a writ or summons issued in the course of judicial proceedings.’” (*Ibid.* citations omitted.) “Unless otherwise provided by statute, notice of a claim against a defendant in a civil action is given by service of a summons on the person.” (*Ibid.*) A court “in which an action is pending has jurisdiction over a party from the time summons is served on him....” (Code Civ. Proc. § 410.50 (a).) “Thus, in the ordinary civil action, unless there be other statutory authority, the issuance and service of summons is a prerequisite to acquisition of jurisdiction.” (*Pousson v. Superior Court of San Diego County* (1958) 165 Cal.App.2d 750, 752.)

The Civil Code prescribes four basis manners of service: (1) personal service, (2) ‘substitute service’ – wherein the papers are left with someone else coupled with mailing, (3) service by mail coupled with an acknowledgement of receipt, and (4) service by publication. (See Cal. Civ. Code § 415.10 et seq.) Here, the Proof at issue indicates that service was made via personal service.

#### Analysis

Here, the proof of service indicates personal service on “Deanna Perry.” However, Deanna Perry is not Tri Delta Transit’s designated agent for service of process, nor a person otherwise authorized to accept service under the law. (Lashinsky Decl. at ¶ 6.) She is neither a clerk, secretary, president, presiding officer, or other head of Tri-Delta, and is not authorized by Tri-Delta to receive service of process. (*Ibid.*) Furthermore, the Proof of Service indicates that neither the Complaint nor any other required documents were served along with the Summons. (Lashinsky Decl., ¶ 6; Ex. 2.)

Service on public entities requires “delivering a copy of the summons and of the complaint to the clerk, secretary, president, presiding officer, or other head of its governing body, or to a person authorized by the entity to receive service of process.” (Code Civ. Proc. § 416.50(a).)

Defendant has not been served in any of the three permissible manners of Code of Civil Procedure section 416.50(a). Additionally, the proof of service indicates service of the summons only. Service is complete when “a copy of the summons and of the complaint” is served by personal delivery. (Code Civ. Proc. § 415.10.)

The motion is **granted**. The Court quashes the service purportedly effectuated on August 2, 2025.

The Court does note that Defendant cited a non-existent case: “*Cummings v. Brantley Hale* (2014) 229 Cal.App.4th 538, 544 [“A summons must be accompanied by a copy of the complaint, and failure to serve both is improper service.”].” The Court can find no hint of this case anywhere. Defendant is admonished to check all citations. Further erroneous citations may result in sanctions.

**11. 9:00 AM CASE NUMBER: C25-02184**  
**CASE NAME: NOORULLAH TARIN VS. TRI DELTA TRANSIT**  
**HEARING ON DEMURRER TO: COMPLAINT**  
**FILED BY: TRI DELTA TRANSIT**  
**\*TENTATIVE RULING:\***

In light of the Court's ruling on Defendant's motion to quash service of the summons and complaint, the Court deems Defendant's demurrer moot. (*McClatchy v. Coblenz, Patch Duffy & Bass, LLP* (2016) 247 Cal.App.4th 368, 375.)

**12. 9:00 AM CASE NUMBER: C25-02647**  
**CASE NAME: GINO CARUSO VS. ELVECIO PINHEIRO MACHADO FILHO**  
**HEARING IN RE: MOTION FOR STATUS CONFERENCE**  
**FILED BY:**

**\*TENTATIVE RULING:\***

Plaintiff requests a status conference. The unopposed request is granted. Parties to appear for status conference.

**13. 9:00 AM CASE NUMBER: C25-02933**  
**CASE NAME: OFEILA NOROOZI VS. SANDEEP WALIA, MD**  
**\*HEARING ON MOTION IN RE: STRIKE FIRST AMENDED COMPLAINT**  
**FILED BY: WALIA, SANDEEP, MD**

**\*TENTATIVE RULING:\***

Before the Court is Defendant Sandeep Walia, M.D. ("Defendant" or "Walia")'s motion to strike portions of Plaintiff Ofelia Noroozi, Payman Noroozi, and Sahar Noroozi (collectively, "Plaintiffs") First Amended Complaint. Plaintiffs oppose the Motion.

For the following reasons, the Motion is **granted-in-part** and **denied-in-part**, with leave to amend.

Legal Standard

California Civil Code ("CC") § 3294 provides in relevant part:

In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant...

(1) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant